



GRETCHEN WHITMER
GOVERNOR

STATE OF MICHIGAN
DEPARTMENT OF
ENVIRONMENT, GREAT LAKES, AND ENERGY
WATER RESOURCES DIVISION



PHILLIP D. ROOS
DIRECTOR

June 10, 2026

VN No. VN-019184

VIA EMAIL

Jeffrey Dietlin, City of Cadillac
200 North Lake Street
Cadillac, Michigan 49601

Dear Jeffrey Dietlin:

SUBJECT: Violation Notice (VN) - Cadillac Wastewater Treatment Plant (WWTP)

The Department of Environment, Great Lakes, and Energy (EGLE), Water Resources Division (WRD), has determined that the Cadillac WWTP is in violation of Part 31, Water Resources Protection, of the Natural Resources and Environmental Protection Act, 1994 PA 451, as amended (NREPA), MCL 324.3101 et seq., and the administrative rules promulgated thereunder being 2006 AACRS R 323.2101 et seq., as amended.

The 'Report of Discharge' (Report), submitted by you, indicated that approximately 16.369 million gallons of partially treated sewage were discharged to the Clam River during a bypass event that lasted from April 16, 2026, to April 29, 2026. Specifically, the Report stated that 11.75 inches of rainfall from April 1, 2026, through April 18, 2026, caused the WWTP's tertiary treatment system to overflow into the bypass channel, followed by subsequent rain events throughout the remaining of April that prolonged the bypass. All of the discharge went through pretreatment, primary treatment, secondary treatment, and ultraviolet (UV) disinfection, while the tertiary treatment system is only capable of treating a maximum of 3.5 million gallons per day. During this wet weather period, the facility experienced peak flows nearing 5.0 million gallons per day.

Additionally, this Report of Discharge, as well as the other reporting requirements required within Section A.6. of the NPDES permit (e.g. notification to the local health department and notification to the local daily newspaper) were not completed within 24 hours of the discharge occurring. This is a violation of the NPDES permit and Section 324.3112a of NREPA.

The discharge of raw or partially treated sewage from a sewer system onto land or into the waters of the state constitutes a violation of Part 31 of the NREPA. While EGLE does not authorize the discharge of raw or partially treated sewage, enforcement discretion may be considered for communities experiencing wet weather-related SSOs - provided those communities are actively implementing an approved corrective action program, or have completed an approved program that is designed to ensure adequate conveyance and treatment of flows resulting from the remedial design standard (RDS) storm event. The RDS is defined as a 25-year, 24-hour storm event (producing 3.9 inches of rainfall within 24

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hours) during the April 1 to October 31 growth period, under normal soil moisture conditions and acceptable rainfall distribution, or an equivalent event.

For any wet weather-related SSO event, it is the responsibility of the community to provide sufficient supporting data and information to demonstrate that the event exceeded the parameters of the RDS. This information is critical for EGLE's consideration of enforcement discretion.

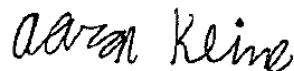
Please submit a written response to MiEnviro by **July 31, 2026**. At a minimum, the response shall include:

1. A detailed description and analysis of the event that resulted in the referenced SSO on April 16, 2026. The report must include a written justification, supported by event-specific data, demonstrating that the rainfall event exceeded the RDS. This should include total precipitation amounts, rainfall distribution, and a description of ground conditions (e.g., antecedent soil moisture).
2. If the events did not exceed the RDS, the response must also include a timeline and description of the corrective actions the City of Cadillac will implement to prevent similar SSOs from occurring during future storm events that are less than the RDS.
3. Confirmation of understanding of the untreated or partially treated sewage discharge reporting requirements and confirmation that these requirements will be followed if there is ever a future bypass from the tertiary treatment system or any other treatment process at the WWTP.

If you have any additional facts you would like us to consider regarding the violations identified in this VN, please provide them with your written response. A schedule of compliance titled, "Submit Corrective Action Plan" has been created in MiEnviro specifically for this purpose and can be found in the Upcoming tab on your MiEnviro Portal Dashboard.

We anticipate and appreciate your cooperation in resolving this matter. Should you require further information regarding this Violation Notice or if you would like to arrange a meeting to discuss it, please contact me at KlineA4@Michigan.gov; 231-429-9452; or EGLE, WRD, Cadillac District Office, P.O. Box 30458, Lansing, Michigan 48909-7958.

Sincerely,



Aaron Kline
Cadillac District Office
Water Resources Division
231-429-9452

ak/sh

cc: Patrick Miller, City of Cadillac
Justin Bragg, EGLE